Docusign Envelope ID: 6138F5BD-8039-4143-AB75-DF621C01A1FF

Contract No. 25000012048

CITY OF RICHMOND
GOODS AND SERVICES CONTRACT

This Contract, dated this 28th day of July, 2025, (the "Commencement Date") between the City of Richmond, Virginia (the "City"), Insight Public Sector (the "Contractor"), and Flock Group Inc. ("Flock") is binding among and between these parties as of the date of the City's final signature.

WHEREAS, Cobb County Contract No. 23-6692-03 was awarded by Cobb County, Georgia as the Principal Procurement Agency, on behalf of OMNIA Partners, Public Sector to Contractor effective May 1, 2023, pursuant to Solicitation No. 23-6692 (the "Cobb County Contract No. 23-6692-03");

WHEREAS, in connection with the City's purchase, Flock requires execution of its End-User Software License Agreement ("EULA") solely to facilitate the provision of certain technology products and services resold through the Contractor;

WHEREAS, the City desires to exercise its authority pursuant to section 21-40(b)(1) of the Code of the City of Richmond to make purchases off of the Cobb County Contract;

THEREFORE, in consideration of the Recitals set forth above and good and valuable consideration as set forth below, the parties agree as follows:

1. **Scope of Contract.** The Contractor shall provide the goods and services to the City as set forth in the Contract Documents enumerated in Section 3 below.

2. **Contract Amount.** The maximum authorized contract amount for this Contract is Two Hundred Seventy-Six Thousand and 00/100 U. S. dollars ($276,000.00). The aggregate of all payments by the City under this Contract shall not exceed this amount. All payments shall be as provided in the Contract Documents. All payments and other obligations by the City under this Contract are subject to annual appropriations by the Richmond City Council; consequently, this Contract shall bind the City only to the extent that Richmond City Council appropriates sufficient funds for the City to perform its obligations hereunder.

3. **Contract Documents.** This Contract shall consist of the following Contract Documents, listed in order of precedence from highest to lowest:

   A. This Goods and Services Contract between the City and the Contractor.
   B. The Cobb County Contract 23-6692-03.
   C. Contractor Quote No. 0228418552 dated May 2
   D. , 2025, consisting of two pages, and attached hereto as Attachment A.
   E. Flock Safety End-User Software License Agreement, consisting of seven pages, and attached hereto as Attachment B.
   F. Any purchase orders issued by the City pursuant to this Contract.

Docusign Envelope ID: 6138F5BD-8039-4143-AB75-DF621C01A1FF

All of these documents are incorporated herein by reference.

3. **Additional Provisions.** The parties further agree as follows:

A. Definitions. Whenever the term "Lead Public Agency," "Cobb County," "Owner," "the County," "Principal Procurement Agency," "Participating Public Agency," or "Public Agencies" appears in the Contract Documents, it shall have the same meaning as "City" for purposes of this contractual relationship between the City and the Contractor.

B. Payments.

1. The Contractor shall submit invoices that include (i) a unique invoice number, (ii) the City's purchase order number, and (iii) the Contractor's Federal Tax Identification Number to either accountspayable@rva.gov or City of Richmond, Accounts Payable, 900 East Broad Street, Richmond, VA 23219.

2. The City shall pay the Contractor as follows: Net 45 days.

3. Method of Ordering.

a. The City may place orders pursuant to this Contract by requesting the Contractor provide a quote, which shall be incorporated into the Contract upon the issuance of a Purchase Order to which the quote is attached. Each quote provided by the Contract must (i) identify this Contract by reference to the City Contract Number; (ii) identify the Cobb County Contract No. 23-6692-03 by reference; (iii) identify the license, equipment, products, or services being ordered or renewed by the City; (iv) identify any applicable term or renewal period (start and end dates), (v) identify the price per license or product, or the total renewal cost and set forth any payments to be made to the Contractor by the City, and (vi) state that the terms and conditions of this Contract are controlling.

For equipment requiring installation, the term shall not commence until the City has confirmed successful installation and accepted the equipment in writing. Acceptance shall not be unreasonably withheld and will occur upon the City's verification that the equipment is installed, operational, and in material conformance with the specifications set forth in the quote or applicable documentation. Upon acceptance, the City and Contractor shall document the acceptance date, and the term associated with the equipment shall be deemed to begin on that date and shall be incorporated into the Contract. Any subsequent quote submitted for renewal of such equipment must reflect the term start date established upon acceptance.

Pricing for licenses, equipment, products, and services ordered under this section shall be in accordance with the prices established under Cobb County Contract No. 23-6692-03. Notwithstanding any provisions appearing on or incorporated into the Contractor's quote, the parties agree that such provisions shall not have any effect or be enforceable against the City to the extent the terms are in addition to, or in conflict of, the terms of this Contract which shall govern all transactions between the parties.

Docusign Envelope ID: 6138F5BD-8039-4143-AB75-DF621C01A1FF

b. The City retains the right to cancel any individual order placed under this Contract without terminating or otherwise affecting the term of the Contract. Cancellation of an individual order shall not affect any other outstanding or future orders under the Contract, and the Contract shall remain in full force and effect with respect to such orders.

c. Under no circumstances shall any third-party software publisher or reseller, including Flock, be authorized to invoice the City directly, nor shall the City be responsible for any such invoices.

C. Term. This Contract shall commence on the Commencement Date set forth in the Goods and Services Contract and shall expire upon expiration of the Cobb County Contract No. 23-6692-03, unless terminated earlier in accordance with the provisions of the Contract.

D. Insurance. The City shall be named an additional insured along with its officers and employees on the Contractor's insurance policies and the Contractor and any subcontractor performing work on City property shall furnish the City with a certificate of insurance meeting the City's requirements prior to any work commencing under the Contract.

E. Forum and Venue. Any and all disputes, claims, and causes of action arising out of or in connection with this Contract or any performance hereunder shall be brought and maintained only in the Circuit Court of the City of Richmond, Virginia.

F. Governing Law. All issues and questions concerning the construction, enforcement, interpretation and validity of this Contract, or the rights and obligations of the City and the Contractor in connection with this Contract, shall be governed by, and construed and interpreted in accordance with, the laws of the Commonwealth of Virginia, without giving effect to any choice of law or conflict of laws rules or provisions, whether of the Commonwealth of Virginia or any other jurisdiction, that would cause the application of the laws of any jurisdiction other than those of the Commonwealth of Virginia.

G. Notice. Any written notice by either party to the Contract shall be sufficiently given by any one or combination of the following, whichever shall first occur: (i) delivered by hand to the last known business address of the person to whom the notice is due, (ii) delivered by hand to the person's authorized agent, representative or officer wherever they may be found or (iii) enclosed in a postage prepaid envelope addressed to such last known business address and delivered to a United States Postal Service official or mailbox. Notice is effective upon such delivery. All legal notices to the City shall be delivered to the City Attorney's Office for the City of Richmond, Suite 400, 900 E. Broad Street, Richmond, Virginia 23219. All notices to the City shall be delivered to the Director of Procurement Services, 900 E. Broad Street, Room 1104, Richmond Virginia, 23219, with a copy to the Richmond City Attorney, Suite 400, 900 E. Broad Street, Richmond, Virginia 23219.

H. Mandatory Contractual Provisions. The City and the Contractor agree that, because the City is subject to certain public procurement requirements set forth in Chapter 21 of the Code of the City of Richmond (2020) ("City Code"), certain contract provisions mandated by that Chapter must be included as a part of the Contract. Accordingly, the mandatory provisions of City Code § 21- 43(d) (i.e., the City's obligation not to discriminate against faith-based organizations), City

Docusign Envelope ID: 6138F5BD-8039-4143-AB75-DF621C01A1FF

Code § 21-70 (i.e., non-discrimination requirements for contracts with a value above $10,000), City Code § 21-167 (i.e., the procedure for filing claims), and City Code § 21-280 (i.e., prohibitions on kickbacks) are hereby incorporated by reference into the Contract.

I. Drug Free Workplace. (1) City Council Resolution No. 2000-R197-191 prohibits the City from contracting with any contractor that fails to comply with this policy. The Contractor certifies that it has taken and will continue to take appropriate and effective action to (i) educate its employees about the dangers of drug abuse in the workplace, (ii) provide its employees with effective drug counseling, rehabilitation and employee assistance programs, any or all, (iii) discipline employees who violate the requirement of a drug-free workplace, and (iv) minimize, to the greatest extent possible, the risks of drugs entering the workplace. The Contractor is also prohibited from contracting with any other party that fails to comply with this policy. Failure by the Contractor or its subcontractor to comply with the provisions outlined above will be cause for termination of the Contract. (2) The Contractor shall implement and maintain a Drug-Free Workplace Plan specific to the services and work covered by this Contract that is implemented and effectively used throughout the duration of this Contract to accomplish the requirements of subsection (1) above.

J. Entire Agreement. This Contract constitutes the entire agreement between the parties and may not be waived or modified except by written agreement between the parties.

K. Exclusions. Attachment B is incorporated solely for the purpose of documenting services to be provided by Flock and shall have effect only to the extent not inconsistent with this Contract. Notwithstanding any provisions appearing in, or incorporated into the Cobb County Contract No. 23-6692-03, Attachment A, or Attachment B, the following provisions shall have no force or effect and shall not be enforceable against the City:

1. Requiring the City to maintain any type of insurance either for the City's benefit or for the Contractor or Flock's benefit;

2. Renewing or extending the Contract beyond the initial term or automatically continuing the contract period from term to term;

3. Requiring or stating that the terms of the Cobb County Contract or Attachment A, or Attachment B, shall prevail over the terms of this Contract in the event of conflict or otherwise;

4. Requiring the City to indemnify, hold harmless or defend the Contractor or Flock for third-party claims of any kind or waiving the City's sovereign immunity;

5. Imposing interest or finance charges greater than those specified in City Code § 21-9 / Va. Code § 2.2-4352, concerning prompt payment;

6. Requiring the application of the law of any state other than Virginia in interpreting or enforcing the Contract or requiring or permitting that any dispute under the Contract be resolved in any court other than the Circuit Court of the City of Richmond, Virginia;

Docusign Envelope ID: 6138F5BD-8039-4143-AB75-DF621C01A1FF

7. Requiring the City to pay liquidated damages, pay termination fees or charges, or make any payment for lost profits or lost revenues if the Contract is terminated before its ordinary term ends;

8. Requiring that the Contract be "accepted" or endorsed by the home office or by any other officer subsequent to execution by the City's Director of Procurement Services before the Contract is considered in effect;

9. Delaying the formation or effective date of the Contract beyond the date on which the City's Director of Procurement Services signs this Contract;

10. Limiting or adding to the time period within which claims can be made or actions can be brought;

11. Limiting the liability of the Contractor, or Flock, or remedy of the City for property damage, personal injury, wrongful death, or infringement of intellectual property rights;

12. Permitting unilateral modification of the Contract by the Contractor, or Flock, or deeming the City to agree to a modification of the Contract by means other than affirmatively signing a contract modification on paper;

13. Binding the City to any arbitration or to the decision of any arbitration board, commission, panel or other entity;

14. Obligating the City to pay amounts beyond the maximum aggregate contract amount set forth in this Contract or any costs of collection or attorney's fees;

15. Granting the Contractor, or Flock, a security interest in property of the City, a right to an injunction against the City greater than authorized by City Charter § 2.08, or a right to any other form of equitable relief not authorized by the Constitution or laws of the Commonwealth of Virginia;

16. Requiring the City to keep confidential any records subject to disclosure under the Virginia Freedom of Information Act or with respect to which the Contractor, or Flock, has not complied with the requirements of City Code § 21-5 / Va. Code § 2.2-4342;

17. Limiting the City's selection and approval of counsel and approval of any settlement in any claim arising under the Contract and in which the City or any of its officers, employees, or agents is a named party;

18. Requiring any dispute resolution procedure other than in accordance with City Code § 21-167;

19. Requiring the City to limit its rights or waive its remedies at law or in equity, including the right to a trial by jury;

Docusign Envelope ID: 6138F5BD-8039-4143-AB75-DF621C01A1FF

20. Establishing a presumption of severe or irreparable harm to the Contractor, or Flock, by the actions or inactions of the City or any officer, employee, or agent thereof; and

21. Granting any right or incurring any obligation that is beyond the duly granted authority of the undersigned City representative to grant or incur on behalf of the City, or requiring the City to violate any applicable law or regulation.

22. Granting the Contractor or Flock or any subcontractor any right to use, analyze, access, license, or commercialize the City's data, including anonymized or aggregated data, beyond what is required to perform the services under this Contract.

23. Permitting the Contractor or Flock to access any City records or data, except pursuant to court order;

24. Permitting the Contractor or Flock to use any information provided by the City except for Flock or the Contractor's own internal administrative purposes;

25. Enforcing the United Nations Convention on Contracts for the International Sale of Goods and all other laws and international treaties or conventions relating to the sale of goods, which are hereby expressly disclaimed, except that UCITA shall apply to this Contract only to the extent required by Va. Code § 59.1-501.15;

26. Requiring that the City, which is tax exempt, be responsible for payment of any taxes, duties, or penalties;

27. Requiring or construing that any provision in this Contract conveys any rights or interest in the City's data to Flock or the Contractor;

28. Permitting termination by Flock or the Contractor of the Contract or the licenses granted thereunder, or permitting suspension of services by Flock or the Contractor, except pursuant to an order from a court of competent jurisdiction;

29. Defining "perpetual" license rights to have any meaning other than license rights that exist in perpetuity unless otherwise terminated in accordance with the applicable provisions of the Contract;

30. Permitting modification or replacement of the Contract pursuant to any new release, update or upgrade of the Software or subsequent renewal of maintenance;

31. Requiring purchase of a new release, update, or upgrade of the Software or subsequent renewal of maintenance in order for the City to receive or maintain the benefits of Flock or the Contractor's indemnification of the City against any claims of infringement on any third-party intellectual property rights; and

32. Granting Flock or the Contractor or an agent of Flock or the Contractor the right to audit or examine the books, records, or accounts of the City.

Docusign Envelope ID: 6138F5BD-8039-4143-AB75-DF621C01A1FF

The parties agree that any provision in Attachment A or Attachment B purporting to impose any of the foregoing unenforceable terms on the City shall be deemed void and of no effect, whether or not expressly rejected or modified herein.

L. Requirements of Flock and Contractor. Notwithstanding any provisions appearing in Attachment A or Attachment B, the City, Flock, and the Contractor further agree as follows:

1. Flock and the Contractor warrants that it is the owner of the Software or otherwise has the right to grant to the City the license to use the Software granted hereunder without violating or infringing any law, rule, regulation, copyright, patent, trade secret or other proprietary right of any third party.

2. If Flock or the Contractor provides an update or upgrade subject to additional payment, the City has the right to reject such update or upgrade.

3. Flock and the Contractor agrees to indemnify, defend and hold harmless the City or its officers, directors, agents and employees ("City's Indemnified Parties") from and against any and all third party claims, demands, proceedings, suits and actions, including any related liabilities, obligations, losses, damages, fines, judgments, settlements, expenses (including attorneys' and accountants' fees and disbursements) and costs (each, a "Claim" and collectively, "Claims"), incurred by, borne by or asserted against any of City's Indemnified Parties to the extent such Claims in any way relate to, arise out of or result from: (i) any intentional or willful conduct or negligence of any employee or subcontractor of Flock or the Contractor, (ii) any act or omission of any employee or subcontractor of Flock or the Contractor, (iii) breach of any representation, warranty or covenant of Flock or the Contractor contained herein, (iv) any defect in the Software, or (v) any actual or alleged infringement or misappropriation of any third party's intellectual property rights by any of the Software. In all Claims asserted against the City's Indemnified Parties, the selection and approval of counsel and approval of any settlement shall be satisfactory to the City.

4. The City may rely on independent contractors, acting on behalf of the City, to perform functions requiring the use of and access to the Software. Nothing in Attachment A or Attachment B shall limit such third parties from using or accessing the Software in order to perform such functions.

5. If any invention, work of authorship, or confidential information is developed exclusively by an employee, consultant, or third-party contractor or subcontractor of the City during the performance of services by Flock or the Contractor, Flock or the Contractor shall have no ownership claim to such invention, work of authorship, or confidential information.

6. Any travel expenses incurred by the Contractor in the course of performing the services must be pre-approved by the City and shall be reimbursed only in accordance with the City's travel procedures.

7. The City may require that the Contractor's personnel submit to a criminal background check prior to performance of any services under this Contract.

Docusign Envelope ID: 6138F5BD-8039-4143-AB75-DF621C01A1FF

8. Payments for license fees, including subscription fees, and maintenance and support services may be made only to the prime contractor who has a direct contractual relationship with the City via the Contract. No software reseller or software publisher or licensor who is the Contractor identified in the Contract is authorized to invoice the City directly, and the City will not pay any such invoices.

IN WITNESS WHEREOF, the parties hereto on the latest day and year written below have executed this Contract.

For the CONTRACTOR:

By: Lisanne Steinheiser 06/27/2025
(signature) *Date*

Lisanne Steinheiser
(typed name)

Global Compliance Officer
(typed title)

IF A CORPORATION, AFFIX CORPORATE SEAL

For the CITY:

By: DocuSigned by: Scott A. Lyons for 116B81B5449E415... 7/28/2025
Rene M. Almaraz *Date*
Director of Procurement Services

For Flock:

Flock is a party to this Contract solely for the limited purpose of performing the services and fulfilling the obligations set forth in Attachment B (Flock Safety End-User Software License Agreement), as modified and incorporated by reference into this Contract. Flock expressly acknowledges and agrees that the City shall have no financial obligation to Flock under any circumstance. In the event of any conflict between the terms of Attachment B and this Contract, the terms of this Contract shall govern and supersede.

By: Mark Smith
Mark Smith (Jul 9, 2025 12:00 PDT)
(signature) *Date*

Mark Smith
(typed name)

General Counsel
(typed title)

IF A CORPORATION, AFFIX CORPORATE SEAL